

A G E N D A



REGULAR MEETING OF THE BOARD OF SUPERVISORS
ORANGE COUNTY, CALIFORNIA

Tuesday, September 29, 2020
9:30 A.M.

BOARD HEARING ROOM, FIRST FLOOR
333 W. Santa Ana Blvd., 10 Civic Center Plaza
Santa Ana, California

MICHELLE STEEL
CHAIRWOMAN
Second District

ANDREW DO
VICE CHAIRMAN
First District

DONALD P. WAGNER
SUPERVISOR
Third District

DOUG CHAFFEE
SUPERVISOR
Fourth District

LISA A. BARTLETT
SUPERVISOR
Fifth District

COUNTY EXECUTIVE OFFICER
Frank Kim

COUNTY COUNSEL
Leon J. Page

CLERK OF THE BOARD
Robin Stieler

This agenda contains a brief description of each item to be considered. Except as provided by law, no action shall be taken on any item not appearing in the agenda. To speak on an item, complete a Speaker Request Form(s) identifying the item(s) and deposit the completed form(s) in the box to the left of the podium. To speak on a matter not appearing in the agenda, but under the jurisdiction of the Board of Supervisors, you may do so during Public Comments at the end of the meeting. Speaker request forms must be deposited prior to the beginning of the consent calendar, the reading of the individual agenda items, the opening of the public hearing and/or the beginning of Public Comments. When addressing the Board, it is requested that you state your name and city of residence for the record. Members of the public desiring to speak should address the Board as a whole through the Chair. Speakers may address the Board on up to three occasions, with three minutes allotted to the speaker per occasion. PowerPoint and video presentations must be requested in advance of the meeting through the Clerk.

Supporting documentation is available for review in the Clerk of the Board of Supervisors office in the Hall of Administration, 333 W. Santa Ana Blvd., Room 465, Santa Ana, 92701 8:00 am - 5:00 pm, Monday-Friday.

The Agenda is available online at: <https://board.ocgov.com/meetings-agendas>

Meetings are broadcast live at <http://bos.ocgov.com/video/video.html>

To listen to live Board meetings by telephone, please call (866)590-5055, Access Code: 4138489

In compliance with the Americans with Disabilities Act, those requiring accommodations for this meeting should notify the Clerk of the Board's Office 72 hours prior to the meeting at (714) 834-2206

INVOCATION: Supervisor Chaffee, Fourth District

PLEDGE OF ALLEGIANCE: Vice Chairman Do, First District

I.PRESENTATIONS/INTRODUCTIONS (None)

II.CONSENT CALENDAR (Items 1-19)

All matters are approved by one motion unless pulled by a Board Member for discussion or separate action. At this time, any member of the public may ask the Board to be heard on any item on the Consent Calendar.

BOARD APPOINTMENTS

1. **Supervisor Chaffee** - Campaign Finance and Ethics Commission - Appoint Franz Miller, Santa Ana for term ending 9/28/23
2. **Supervisor Wagner** - Orange County Waste Management Commission - Reappoint Beth Marie Haney, Yorba Linda for term ending 1/18/22

ELECTED DEPARTMENT HEADS

Auditor-Controller:

3. Authorize Auditor-Controller to delete damaged, destroyed, dismantled, donated, missing, obsolete, stolen and surplused equipment from Health Care Agency and Clerk-Recorder capital asset inventories - All Districts
4. Receive and file Annual Reports of Cash Difference Funds, Cash Shortages and Overage Funds for FY 2019-20 - All Districts
5. Receive and file Annual Report of Revolving Funds for FY 2019-20 - All Districts
6. Receive and file Report of Refunds for FY 2019-20 - All Districts
7. Receive and file Semi-Annual Fund/Budget Control Report for FY 2019-20 - All Districts

District Attorney:

8. Approve amendment 2 to contract MA-026-20010884 with Bode Cellmark Forensics, Inc. dba Bode Technology for sexual assault kit DNA testing services, 10/1/20 - 9/30/21

(\$574,875; cumulative total \$1,187,546); and authorize County Procurement Officer or authorized Deputy to execute amendment - All Districts

9. Approve contract MA-026-20012132 with Axon Enterprise, Inc. for taser equipment and related supplies, 9/29/20 - 7/22/21 (\$30,000); renewable for two additional one-year terms; and authorize County Procurement Officer or authorized Deputy to execute contract - All Districts

HEALTH CARE AGENCY

10. Approve selection of and agreement MA-042-20010222 with Phoenix House Orange County, Inc. for Adult Residential Drug Medi-Cal Withdrawal Management services, 11/1/20 - 6/30/22; renewable for two additional one-year terms; and authorize County Procurement Officer or authorized Deputy to execute agreement and execute agreement with additional providers under certain conditions - District 1
11. Approve amendment 3 to contract MA-042-20010234 with various providers of community clinic services, 7/1/19 - 6/30/21 (\$3,849,393; cumulative total \$22,288,197); and authorize Director or designee to execute individual amendments and subsequent amendments under certain conditions - All Districts

OC COMMUNITY RESOURCES

12. Approve amendment 2 to contract 20-27-0044 with Council on Aging - Southern California, Inc. for Health Insurance Counseling & Advocacy Program, Medicare Improvement for Patients and Providers Act and Financial Alignment services, 10/1/20 - 6/30/21 (\$116,856; cumulative total \$639,753); and authorize Director or designee to execute amendment - All Districts

OC PUBLIC WORKS

13. Approve amendment 3 to renew contract MA-080-18010124 with Action Research for stormwater education and outreach campaign services, 11/9/20 - 11/8/21 (\$470,000; cumulative total \$1,970,000); renewable for one additional one-year term; authorize County Procurement Officer or authorized Deputy to execute amendment; and make California Environmental Quality Act and other findings - All Districts
14. Approve Orange County Traffic Committee 7/16/20 report; and adopt resolution naming proposed public street within Tract 17605 and Vesting Tentative Tract Map 19108 as Spur Street, Rancho Mission Viejo area - District 5

GENERAL ADMINISTRATION

Clerk of the Board:

15. Approve proposed amendments to the Conflict of Interest Code Designated Filer Exhibits for Buena Park Library District - Districts 2 and 4
16. Approve proposed amendments to the Conflict of Interest Code Designated Filer Exhibits for Orange County Sanitation District - All Districts

County Executive Office:

17. Receive and file Quarterly Information Technology Projects Progress Report for Fourth Quarter FY 2019-20 - All Districts
18. Approve amendment 16 to master services agreement with Science Applications International Corporation for data center operations, service desk, desktop support and applications services to eliminate fees for CEO/IT enterprise dedicated storage, backup, replication and encryption hardware services, effective 11/1/20 (\$3,187,551 decrease; cumulative total \$171,079,623); authorize County Chief Information Officer or designee to execute amendment and pay termination fee (\$133,669) - All Districts
19. **Internal Audit** - Receive and file Executive Summary of Internal Audit Reports for April - June 2020; and receive and file Annual Report on Independence - All Districts

END OF CONSENT CALENDAR

III.DISCUSSION ITEMS (Items 20-29)

At this time, members of the public may ask the Board to be heard on the following items as those items are called.

ELECTED DEPARTMENT HEADS

20. **Sheriff-Coroner** - Approve amendment 4 to contract MA-060-19010294 with All City Management Services, Inc. for crossing guard services, 11/1/20 - 10/31/22 (\$1,537,531); renewable for one additional one-year term; and authorize County Procurement Officer or authorized Deputy to exercise cost contingency increase not to exceed 10 percent under certain conditions and execute amendment - All Districts

OC COMMUNITY RESOURCES

21. Ratify amendment 6 to contract MA-012-11010396 with US Ocean Safety, Inc. for lifeguard services, 8/1/20 - 6/30/21 (\$718,750; new total \$7,648,965; cumulative total \$25,534,524); and authorize County Procurement Officer or authorized Deputy to execute amendment - Districts 2 and 5

OC PUBLIC WORKS

22. Approve cooperative agreement MA-080-20012079 with City of Westminster for Funding. Design and Construction of Traffic Signal Upgrades - Newland Street at Hazard Avenue Project; adopt resolution declaring portions of Newland Street and Hazard Avenue to be County of Orange highways; upon completion authorize Director or designee to file and record the resolution and notice of completion returning highways to City of Westminster; and authorize Director or designee to execute future amendments under certain conditions - District 1 (4/5 vote of the members present)

GENERAL ADMINISTRATION

County Executive Office:

23. Approve recommended positions on introduced or amended legislation and consider other legislative subject matters - All Districts
24. Approve in concept issuance of short-term Taxable Pension Obligation Bonds for early payment of County's FY 2021-22 employer pension obligation; and select Fieldman, Rolapp & Associates, Inc. as municipal advisor and Orrick, Herrington & Sutcliffe, LLP as bond counsel - All Districts
25. Approve grant applications/awards submitted in 9/29/20 grant report and other actions as recommended - All Districts
Revised Title to read:
County Executive Office - Approve grant applications/awards submitted by Registrar of Voters, Sheriff Coroner, District Attorney, OC Community Resources and Social Services Agency and retroactive grant applications/awards submitted by OC Public Works in 9/29/20 grant report and other actions as recommended; adopt resolution approving State of California Standard Agreement 20G26130 for Federal HAVA funds for COVID-19 related election activities and authorizing Registrar of Voters or designee to execute standard agreement, amendments, related documents and make non-monetary and non-material changes under certain conditions; adopt resolutions authorizing Sheriff-Coroner or designee to execute Agreement for Transfer or Purchase of Equipment/Services or for Reimbursement of Training Costs for FY2018 and FY2019 Urban Area Security Initiative and making related assurances; adopt resolution authorizing Sheriff-Coroner or designee to execute and submit application and grant assurance to California Office of Emergency Services for FY 2019 Homeland Security Grant Program (\$3,389,080); and take related actions under certain conditions; adopt resolutions authorizing District Attorney or designee to execute grant award agreements and amendments with California Department of Insurance for Disability and Healthcare Insurance Fraud Program (\$1,109,824) and Automobile Insurance Fraud Program (\$1,037,577), 7/1/20 - 6/30/21; and making California Environmental Quality Act and other findings; and adopt resolution authorizing OC Parks Director or designee to conduct negotiations, execute and submit related documents with California Natural Resources Agency for Clark Interpretive Center Educational Kits; and making California Environmental Quality Act and other findings - All Districts
26. Receive update from County Executive Office, Health Care Agency, and other County departments concerning efforts to address and mitigate the public health and other impacts caused by the Novel Coronavirus (COVID-19) emergency, and provide direction to the County Executive Officer and other County Officers concerning ongoing County operations, allocation of County resources and personnel, maintenance of essential public services and facilities, temporary suspension and/or closure of non-essential public services and facilities, management of County property and finances, measures necessary to protect public health and safety, and expenditures necessary to meet the social needs of the population - All Districts
27. Approve amendment 1 to Amended and Restated Lease with Palmo Investments for Newport Marina Improvements, extend term to 45 years beginning first day of full calendar month after submittal of Certification of Occupancy or final permits issued by City of Newport Beach; and make California Environmental Quality Act and other findings - District 2

28. Approve FY 2019-20 Fourth Quarter Budget Report and related budget adjustments; receive and file FY 2019-20 Charitable Organization Summary Report; approve updated title descriptions, classifications or both for Project Manager positions, effective 10/9/20 and adopt Side Letter Agreements for Engineering Certification premium pay and revisions to Project Manager occupational series; approve and adopt Side Letter Agreement modifying Supervisory Management MOU to add case call premium pay, effective 10/9/20; and approve revised title descriptions and classifications for Epidemiologist occupational series, effective 10/9/20 - All Districts (R.A. 1, 2, 3 and 4 require 4/5 vote of the members present)
29. **Vice Chairman Do and Clerk-Recorder** - Authorize Clerk-Recorder to expend County general funds to establish program for expedited removal of illegally discriminatory provisions including racially and ethnically restrictive covenants from County-recorded property documents at no charge and notify property owners of program; authorize Clerk-Recorder to notify District Attorney and cooperate in criminal investigations involving persons filing property documents with illegally discriminatory language; and direct County Executive Officer to return to the Board with analysis of planned legislation to be introduced by Assemblyman Kevin McCarty - All Districts
Revised Title to read:
Vice Chairman Do and Clerk-Recorder - Authorize Clerk- Recorder to expend ~~County general~~ *Clerk Recorder (Budget Control 059)* funds to establish program for expedited removal of illegally discriminatory provisions including racially and ethnically restrictive covenants from County-recorded property documents at no charge and notify property owners of program; authorize Clerk-Recorder to notify District Attorney and cooperate in criminal investigations involving persons filing property documents with illegally discriminatory language; and direct County Executive Officer to return to the Board with analysis of planned legislation to be introduced by Assemblyman Kevin McCarty - All Districts
- S29A. **Chairwoman Steel** - Orange County Veterans Advisory Council - Appoint Alex Maslin, Rancho Santa Margarita, for term ending 3/27/22; and reappoint Dale Soeffner, Garden Grove, for term ending 3/4/22 and Erik E. Duane, Westminster, for term ending 3/27/22
- S29B. **Health Care Agency** - Approve Subrecipient Agreement with City of Huntington Beach for Coronavirus Aid, Relief and Economic Security (CARES) Act financial assistance (\$3,000,000) and transfer certain assets to establish temporary alternative shelter sites; direct Auditor-Controller to issue payment under certain conditions; authorize Director or designee to execute related documents under certain conditions; and make findings pursuant to Government Code Section 26227 – District 2
- S29C. **County Executive Officer** - Approve Type 2 Work Order NCY2-007 under agreement for managed services network, voice and security with Science Applications International Corporation for services to assist with implementation of TelePresence solution (\$340,000); and authorize Chief Information Officer or designee to execute work order and increase fee amount not to exceed 10 percent under certain conditions – All Districts

- S29D. **John Wayne Airport** - Approve Consent to Assignment and Second Amendment to On-Airport Rental Car Concession Lease from The Hertz Corporation dba Thrifty Car Rental assigning to The Hertz Corporation dba Hertz for On-Airport Rental Car Concession, Site 7, effective 9/29/20 - District 2

IV.PUBLIC HEARINGS (None Scheduled)

V.CLOSED SESSION (None Scheduled)

The Board will break for lunch at approximately 12:00 PM and may consider closed session matters during that break. The Board will then resume to handle any remaining business if necessary.

GENERAL ADMINISTRATION

- SCS1. **County Counsel** - CONFERENCE WITH LEGAL COUNSEL - EXISTING LITIGATION - Pursuant to Government Code Section 54956.9(d)(1):
Name of Case: Rebecca Contreras (Deceased) v. County of Orange, Workers' Compensation Appeals Board Case Nos. ADJ13385367; ADJ11496328

VI.PUBLIC, CEO, BOARD COMMENTS & ADJOURNMENT

PUBLIC COMMENTS:

At this time, members of the public may address the Board of Supervisors regarding any off-agenda items within the subject matter jurisdiction of the Board of Supervisors provided that NO action may be taken on off-agenda items unless authorized by law. Comments shall be limited to three minutes per person, unless different time limits are set by the Chair subject to the approval of the Board.

COUNTY EXECUTIVE OFFICER COMMENTS:

BOARD COMMENTS:

At this time, members of the Board of Supervisors may comment on agenda or non-agenda matters and ask questions of or give directions to staff; provided that NO action may be taken on off-agenda items unless authorized by law.

ADJOURNED:

NEXT MEETINGS:

October 6, 2020	Regular Meeting
October 13, 2020	No Scheduled Meeting
October 20, 2020	Regular Meeting